

24AVCV01149 24AVCV01149

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-02

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Case Number: 24AVCV01149 Hearing Date: September 2, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ALEXANDER MARTIN TROSCH,

Plaintiff,

v.

CHRISTIAN THOMAS TROSCH; and DOES 1 through 10,

Defendants.

Case Number 24AVCV01149

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: September 2, 2026

Dept. A-14

Judge William H. Forman

I. Background

Plaintiff Alexander Martin Trosch (Plaintiff) moves the Court (1) to vacate its Order sustaining Defendant Christian Thomas Trosch's (Defendant) demurrer without leave to amend, (2) for relief under Code of Civil Procedure sections 473(b) and 472(c), (2) to reconsider and vacate its interlocutory order, and (4) for leave to file a third amended complaint.

Plaintiff alleges that during a period of medical illness in 2010, he temporarily entrusted various properties to Defendant via quitclaim deed while maintaining payments on property taxes. Plaintiff contends that in 2017, following a dispute between the parties, Defendant began stating that he was owed money in connection with the properties and ceased meaningful communication with Plaintiff.

On September 13, 2024, Plaintiff filed his Complaint, a form complaint with breach of contract and other allegations checked off. Under other allegations, Plaintiff wrote in Quiet Title for four different properties. Annulment of quitclaim deeds was written in as a prayer.

On May 23, 2025, Defendant filed a Demurrer, subsequently sustained with leave to amend.

On July 31, 2025, Plaintiff filed his First Amended Complaint (FAC), alleging eight causes of action for: (1) Breach of Oral Agreement; (2) Fraud; (3) Restitution/Unjust Enrichment; (4) Fiduciary Duty; (5) Undue Influence; (6) Constructive Trust; (7) Rescission of Quitclaim Deed; and (8) Quiet Title.

On September 29, 2025, Defendant filed a Demurrer to the FAC, subsequently sustained with leave to amend.

On December 23, 2025, Plaintiff filed his SAC, alleging five causes of action for: (1) Rescission/Cancellation of Instrument; (2) Constructive Trust; (3) Fraud (Constructive Fraud); (4) Unjust Enrichment, and (5) Quiet Title. While the title of the claims were different, the SAC alleged the same claims as the FAC.

On February 2, 2026, Defendant filed a demurrer to the SAC.

On May 26, 2026, the demurrer was sustained in its entirety without leave to amend.

On July 28, 2026, Plaintiff filed the present motion to vacate the Order sustaining the demurrer without leave to amend and for leave to file a third amended complaint (TAC).

On August 20, 2026, Defendant filed his objection and a proposed judgment of dismissal.

On August 27, 2026, Plaintiff filed his reply.

II. Preliminary Procedural Issues

Timeliness of Plaintiff's Reply – All reply papers are due five court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff's reply was due on or before August 26, 2026 but was not filed until the next Court day, rendering the reply untimely.

In the interests of adjudicating the issue and in the absence of objection from or prejudice to Defendant, the Court exercises its discretion to consider the untimely reply.

III. Legal Standard

Standard for Motion to Reconsider and Vacate Order – “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008, subd. (a).) “A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]” (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

A party may make such a motion if the motion is: (1) brought before the same judge or court that make the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order; (3) based on new or “alleged different state of facts,” circumstances or law than those before the court at the time of the original ruling; and (4) supported by a declaration stating what application was made before, when and to what judge, what order or decisions were made, and the new or different facts, circumstances or law claimed to exist. (Code Civ. Proc. § 1008, subd. (a); Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal. App. 3d 1371, 1386, n. 9.)

The moving party must present new facts, circumstances, or law in order to grant a motion for reconsideration. (See Code Civ. Proc., § 1008, subd. (a); see also Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342.) Further, “the party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time.” (Glade v. Glade (1995) 38 Cal.App.4th 1441, 1457.) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.)

Standard for Leave to Amend Pleadings Following Demurrer – Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245). However, sustaining a demurrer without leave to amend is not an abuse of discretion if the plaintiff “can suggest no legal theory or state of facts which they wish to add by way of amendment.” (HFH, Ltd. v. Superior Court (1975) 15 Cal.3d 508, 513, fn. 3.)

Where a demurrer is sustained without leave to amend, even if done so properly absent any showing at the hearing that the causes of action could be reasonably amended, a plaintiff may bring a motion for reconsideration of the order denying leave to amend and make the requisite showing that the complaint can be amended in a proposed amended complaint which states a cause of action. (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1386.) If, on the motion for reconsideration, the plaintiff submits a proposed amended complaint that states any causes of action, the trial court must “vacate its order which sustained the demurrers without leave to amend and (2) make a different order granting plaintiffs leave to file an amended complaint, which would include the causes of action which the trial court, in deciding the merits of the motion for reconsideration, determined were valid.” (Ibid; Rains v. Superior Court (1984) 150 Cal.App.3d 933, 945.)

IV. Discussion

Application – Plaintiff moves the Court (1) to vacate its Order sustaining Defendant Christian Thomas Trosch's (Defendant) demurrer without leave to amend, (2) for relief under Code of Civil Procedure sections 473(b) and 472c, (2) to reconsider and vacate its interlocutory order, and (4) for leave to file a third amended complaint. (Motion, p. 2:1-12.) The motion is made on the grounds that the deficiencies identified by the Court in sustaining the demurrer without leave to amend were the result of Plaintiff's mistake and excusable neglect in failing to understand and adequately plead the legal distinction between record title and beneficial ownership and the specific factual allegations to state his causes of action. (Motion, p. 2:20-25.)

As a preliminary matter, the Court notes that Section 472c is inapplicable as it concerns appeals of orders sustaining demurrers. The Court also notes in response to Plaintiff's arguments raised in his motion that this is not an interlocutory appeal.

As to Plaintiff's request for discretionary relief under Code of Civil Procedure section 473, subdivision (b), the Court declines to exercise its discretionary authority to vacate its Order sustaining the demurrer without leave to amend. To start, Plaintiff's motion largely focuses on the remediation of the deficiencies noted by the Court in sustaining the demurrer in his proposed third amended complaint (TAC), but does not provide law to support his contention that relief from the Order itself is warranted on the grounds of mistake, excusable neglect, surprise, or inadvertence.

Per Code of Civil Procedure section 473, subdivision (b), a court may "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Code of Civil Procedure section 473 "is a remedial statute to be 'applied liberally' in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25 (emphasis added).)

Here, Plaintiff asserts he is seeking discretionary relief on the grounds that the deficiencies identified by the Court in sustaining the demurrer without leave to amend were the result of Plaintiff's mistake and excusable neglect in failing to understand and adequately plead the legal distinction between record title and beneficial ownership and the specific factual allegations to state his causes of action. (Motion, p. 2:20-25.) Plaintiff asserts in his declaration that after review of the Court's third order sustaining Defendant's demurrer, he now understands that his prior pleadings were legally insufficient, and that because he is not a trained attorney, he mistakenly believed that the factual allegations contained in the three complaints filed were "enough." (Trosch Decl., ¶¶ 3-4.) Plaintiff also asserts that after the third demurrer was sustained, he "undertook extensive review of [his] relationship with Defendant spanning more than forty years," and "[a]s [he] reconstructed the factual history and reviewed old transactions between [them], [he] realized for the first time that numerous prior business dealings had followed a similar pattern in which [he] relied upon Defendant to complete transactions on [their] mutual behalf while trusting him to account fairly to [Plaintiff]," which he never before questioned because of their relationship as twin brothers and his complete confidence in him. (Trosch Decl., ¶ 9.) Plaintiff states that only while preparing his proposed third amended complaint did he recognize a continuing pattern of conduct that caused him to reevaluate the circumstances surrounding the at-issue property transfers. (Trosch Decl., ¶ 9.)

Finally, Plaintiff asserts that he "had no reason to suspect that Defendant's representations and conduct were part of a longstanding pattern of deception because Plaintiff and Defendant had maintained a 40-year confidential relationship, Plaintiff had historically trusted Defendant, and Defendant's conduct did not openly reveal his alleged intentions. Plaintiff continued to believe that Defendant would honor the parties' agreement until Defendant's later conduct, including his refusal to honor the agreement and the manner in which he responded to Plaintiff's demands and pursued the present litigation, caused Plaintiff to reevaluate the history of their relationship. During Plaintiff's subsequent reconstruction of the parties' decades-long dealings, Plaintiff recognized facts that, viewed collectively, caused him for the first time to suspect that Defendant may have concealed his true intentions and may have engaged in a longstanding pattern of deceptive conduct." (Trosch Decl., ¶ 11.) Plaintiff provides a proposed TAC which asserts three causes of action for (1) breach of confidential relationship/fiduciary duty, (2) fraudulent concealment, and (3) intentional infliction of emotional distress. (Trosch Decl., Ex. A.)

Here, the Court finds that any neglect resulting in deficient pleadings is inexcusable. Plaintiff filed the complaint, to which Defendant demurred. The legal insufficiencies of the complaint were detailed in Defendant's demurrer, and the Court

sustained the demurrer and granted Plaintiff leave to amend. Plaintiff then filed his FAC, to which Defendant demurred. The Court again sustained the demurrer with leave to amend.

Finally, Plaintiff filed his SAC, to which Defendant demurred. In sustaining the demurrer, the Court noted "Plaintiff has attempted to plead the same causes of action three times. At the hearing on this matter, the Court asked Plaintiff what he would include in an amended complaint that has not [been] included in his previous complaints. Plaintiff stated that there are emails between him and Defendant where Defendant offered to transfer the properties to him for payment. Defendant stated that he has always told Plaintiff that he would consider selling the property. The Court does not see how these allegations are different from what has been alleged or would cure the problems noted." The Court also noted that "though the title of the claims are now different, it appears that the SAC alleges the same claims as in the FAC with 'Rescission of Quitclaim Deed' now labeled 'Recession/Cancellation of Instrument,' Fraud now labeled as 'Fraud (Constructive Fraud),' and 'Restitution/Unjust Enrichment' now labeled 'Unjust Enrichment.'" (See Statement of Decision, 5/27/26.)

Plaintiff has had three opportunities to amend his complaint to comply with pleading requirements, failed to do so, and now seeks relief from a Court Order based on information that was already available and known to him at the time all three prior complaints were filed. Plaintiff was also unequivocally on notice that as pled, his complaints were legally insufficient, untenable, and failed to state a cause of action against Defendant. The Court is not persuaded that Plaintiff's neglect in failing to apprise himself of the applicable law prior to filing the complaint, the FAC, and the SAC despite being made aware that his pleadings were legally insufficient and despite being aware of the factual bases underlying his proposed TAC constitutes excusable neglect based on the facts presented. Under these circumstances, a reasonably prudent person would have investigated the facts known prior to filing a complaint, would have further investigated and reviewed the legal requirements for pleading the causes of action for which the Court sustained a demurrer, and reviewed the law applicable to his or her own case on making the decision to represent him or herself. Plaintiff did not do so here.

Finally, to the extent that Plaintiff asserts his unfamiliarity with the law constitutes a basis for relief, the law is clear that "mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 984-985.) "Pro. per. litigants are held to the same standards as attorneys." (Kobayashi v. Superior Court, 175 Cal. App. 4th 536, 543.) "The law does not entitle a party to proceed experimentally without counsel and then turn back the clock if the experiment yields an adverse result. One who voluntarily represents himself 'is not, for that reason, entitled to any more (or less) consideration than a lawyer. Thus, any alleged ignorance of legal matters or failure to properly represent himself can hardly constitute 'mistake, inadvertence, surprise or excusable neglect' as those terms are used in section 473. [Citation.]" (Hopkins & Carley v. Gens (2011) 200 Cal. App. 4th 1401, 1413.)

Therefore, Plaintiff's failure to familiarize himself with the law and his request for relief on the grounds that he is not a trained attorney do not constitute excusable neglect or mistake, particularly where the Court detailed on two prior occasions the deficiencies with the pleadings. Plaintiff had sufficient notice from the Court that his complaints were legally insufficient, had opportunity to further investigate the applicable law to maintain his action, and Plaintiff purportedly failed to take any affirmative action to familiarize himself with the appropriate legal standards, pleading requirements, factual bases underlying his assertions, or the relevant legal framework to maintain his causes of action.

To the extent that Plaintiff otherwise requests reconsideration of the Order, Plaintiff's motion for reconsideration is untimely, the Court has no jurisdictional ability to hear the motion, and it must be denied.

Code of Civil Procedure section 1008, subdivision (a) states that a party may only move for reconsideration within 10 days after service upon the party who so moves. This limitation is strict and jurisdictional in nature. Section 1008 specifically prescribes a 10 day limit for filing such motions, and provides that "[t]his section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." (Code Civ. Proc., § 1008, subd. (a), (e).) Furthermore, any violation of this section may be punished as contempt and with sanctions, and "an order made contrary to this section may be revoked by the judge or commissioner who made it, or vacated by a judge of the court in which the action or proceeding is pending." (Code Civ. Proc., § 1008, subd. (d).)

"Subdivision (e), the jurisdictional limitation, was added by an act of the Legislature in 1992. (Stats. 1992, ch. 460, § 4.) The Legislative Counsel's Digest concerning the act amending section 1008 states:

The Legislature finds and declares the following:

...

(b) In enacting Section 4 of this act, it is the intent of the Legislature to clarify that no motions to reconsider any order made by a judge or a court, whether that order is interim or final, may be heard unless the motion is filed within 10 days after service of written notice of entry of the order, and unless based on new or different facts, circumstances, or law."

(Morite of California v. Superior Court (1993) 19 Cal. App. 4th 485, 491-492.)

The Court sustained Defendant's demurrer on May 26, 2026. That same day, the Court filed a Certificate of Mailing to Plaintiff for service of the Minute Order sustaining the demurrer without leave to amend. On May 27, 2026, the Court issued its Statement of Decision and Final Order After Hearing, which was served on Plaintiff via mail that same day. Service is complete upon deposit of the mailing, and any duty to act or respond within any period or on a date certain after service, said date shall be extended five calendar days when mailed within California. Therefore, service of the Order was complete on May 26, 2026, and Plaintiff had 15 days to bring this motion, rendering it due on or before Wednesday, June 10, 2026. Plaintiff did not file the motion until July 28, 2026, rendering it untimely and removing the jurisdictional authority for the Court to consider the motion.

There are two exceptions to this rule barring the Court from reconsidering a motion after 10 days have elapsed: (1) if the Court determines at any time that there has been a change of law that warrants it to reconsider its prior order, it may do so on its own motion and enter a different order (Code Civ. Proc., § 1008, subd. (c)), and (2) where the requirements of Section 1008 have not been satisfied, and "if the court is seriously concerned that one of its prior interim rulings might have been erroneous, and [] that it might want to reconsider that ruling on its own motion," it may raise the motion sua sponte to "correct its own erroneous interim orders" (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1108-09).

Neither exception is applicable. There has been no change in law warranting reconsideration of the Order, and the Court is not concerned, and Plaintiff does not argue, that its original Order was issued in error.

Therefore, Plaintiff's motion is DENIED in its entirety.

V. Conclusion

Plaintiff Alexander Martin Trosch's Motions for Reconsideration and to Vacate the Order Sustaining Demurrer Without Leave to Amend are DENIED.

Plaintiff Alexander Martin Trosch's Motion for Leave to File a Third Amended Complaint is DENIED.